



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing eight judgments on Tuesday 23 May 2017 and 15 judgments and / or decisions on Wednesday 24 May 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 23 May 2017

[Van Wesenbeeck v. Belgium \(application nos. 67496/10 and 52936/12\)](#)

The applicant, Adrianus Van Wesenbeeck, is a Dutch national who was born in 1961 and lives in Beveren (Belgium). The case concerns the use of special methods of searching, observation and infiltration during an investigation against the applicant.

On 10 May 2006 the Crown Prosecutor of Hasselt agreed to a proactive investigation against the applicant and a number of other suspects, on suspicion of drug trafficking, participation in an international criminal organisation and money laundering, among other offences. The proactive investigation involved special observation and infiltration methods. In accordance with the Code of Criminal Procedure, a separate, confidential case file was constituted. Two reports containing details of the evidence gathered through the use of those special measures were added to the ordinary criminal case file.

On 18 September 2008 the Crown Prosecutor requested the investigating judge of the Court of First Instance of Hasselt to open a judicial investigation. The judge then headed a "conventional" investigation. The observation and infiltration continued until 14 June 2009, when a number of suspects, including Mr Van Wesenbeeck, were arrested and remanded in custody.

The Indictments Division of Antwerp Court of Appeal had the task of verifying the conformity of the confidential file with the evidence in the criminal case file and of ensuring that there was no irregularity. In a judgment of 24 June 2010 it decided that the file was complete and that there was no nullity, irregularity or breach of any statutory or Convention provision; nor had any irregularities proceeded from the use of the special investigation methods.

Mr Van Wesenbeeck appealed on points of law. The Court of Cassation dismissed his appeal. Mr Van Wesenbeeck was committed to stand trial. In a judgment of 16 March 2011 of the Hasselt Court of First Instance, he was sentenced to ten years' imprisonment and a fine of 137,500 euros for drug trafficking, participation in a criminal organisation and money laundering. The Antwerp Court of Appeal upheld the judgment and the Court of Cassation dismissed the applicant's appeal.

Relying on Article 6 § 1 (right to a fair hearing) of the European Convention on Human Rights, the applicant complains about the lack of access to the confidential file. Under Article 6 § 3 (d) (right to examine witnesses), he complains that he was unable to examine or have examined the undercover officers.

[Krunoslava Zovko v. Croatia \(no. 56935/13\)](#)

The applicant, Krunoslava Zovko, was born in 1965 and lives in Samobor (Croatia). The case concerns the administrative proceedings with regard to her entitlement to sick leave following a car accident.

Ms Zovko was injured in 2009 while driving home from work and was initially granted sick leave on the basis of a work-related injury. However, following a visit to her general practitioner in October 2011, she was granted sick leave on the basis of an illness. Ms Zovko complained to the administrative authorities requesting that her sick leave be granted on the basis of her work-related injury, without success. The administrative authorities based their findings on expert reports they had commissioned from their in-house medical bodies which, taking into account the arguments and medical documentation Ms Zovko had submitted during the proceedings, found no causal link between her work-related injury and sick leave. The Zagreb Administrative Court, after having held a hearing at which Ms Zovko was represented by counsel, upheld the decision of the administrative authorities, ruling that she had failed to raise any doubts about the findings of those expert reports.

Relying on Article 6 § 1 (right to a fair hearing) of the European Convention, Ms Zovko alleges that the administrative proceedings concerning her entitlement to sick leave were unfair. She notably complains that she was excluded from the procedure of commissioning and obtaining the expert reports used to decide the merits of her claim and alleges that the medical experts who had produced the reports were biased.

[Matiošaitis and Others v. Lithuania \(nos. 22662/13, 51059/13, 58823/13, 59692/13, 59700/13, 60115/13, 69425/13, and 72824/13\)](#)

The applications are made by eight Lithuanian nationals, who have all been sentenced to life imprisonment in Lithuania. They all claim that there is no realistic prospect of their sentences being commuted, and that they are therefore imprisoned with no prospect of release. They complain that this punishment amounts to treatment which is in violation of Article 3 (prohibition of inhuman and degrading treatment). Furthermore, one applicant also relies on Article 2 of Protocol No.1 (right to education), to complain that he was not allowed to pursue vocational education whilst in prison.

The applicants are: Kęstutis Matiošaitis (born 1961), Juozas Maksimavičius (born 1963), Stanislovas Katkus (born 1956), Vladas Beleckas (born 1954), Rolandas Lenkaitis (born 1973), Aidas Kazlauskas (born 1968), Piort Gervin (born 1984), and Edmundas Svotas (born 1983). They are serving sentences in Lukiškės Prison (Mr Matiošaitis, Mr Maksimavičius, Mr Katkus, Mr Kazlauskas, Mr Gervin, and Mr Svotas) and the Pravieniškės Correctional Institution (Mr Beleckas and Mr Lenkaitis).

[Bălșan v. Romania \(no. 49645/09\)](#)

The applicant, Angelica Camelia Bălșan, is a Romanian national who was born in 1957 and lives in Petrosani (Romania). The case concerns domestic violence.

Ms Bălșan married in 1979 and had four children. According to Ms Bălșan, her husband was violent towards her and their children throughout their marriage. The violence intensified in 2007 during their divorce proceedings and continued into 2008 when the divorce was finalised. She was assaulted by her husband in total eight times in this period, and sustained injuries recorded in medical reports as requiring between two to a maximum of ten days' medical care.

In the period 2007-2008 Ms Bălșan asked for assistance by way of emergency calls to the police, petitions to the head of police for protection and formal criminal complaints. As concerned the latter, it was considered, both at the investigation level and before the national courts, that she had provoked the domestic violence and that it was not serious enough to come under the scope of the criminal law. Thus, as concerned the three incidents which occurred in 2007 the courts ultimately decided to acquit her husband of bodily harm; and as concerned the five incidents in 2008, the prosecuting authorities decided not to press charges. Her husband was given an administrative fine following each of these decisions. During the criminal investigations and the court proceedings Ms Bălșan continued to bring to the authorities' attention her husband's abuse, warning them that she feared for her life. No concrete measures were however ever taken and her requests that the courts order protective measures went unanswered.

Ms Bălşan alleges that the authorities failed to protect her from repeated domestic violence and to hold her husband accountable, despite her numerous complaints. She also submits that the authorities' tolerance of such acts of violence had made her feel debased and helpless. The case will be examined under Article 3 (prohibition of inhuman and degrading treatment) and Article 14 (prohibition of discrimination).

[Paluda v. Slovakia \(no. 33392/12\)](#)

The case concerns the inability of a judge to challenge in court a decision to suspend him from office pending the outcome of disciplinary proceedings against him.

The applicant, Peter Paluda, is a Slovak national who was born in 1959 and lives in Bratislava. In September 2009 Mr Paluda, a Supreme Court judge, was suspended from office pending disciplinary proceedings brought against him. The proceedings were brought following his making accusations – in a criminal complaint and public statements – of abuse of authority against the President of the Supreme Court. The decisions to suspend him and to bring disciplinary proceedings were taken by the national Judicial Council, the supreme governing body of the judiciary in Slovakia, presided at the time under domestic law by the President of the Supreme Court.

Mr Paluda attempted, unsuccessfully, to challenge his suspension before the Judicial Council, the administrative courts and the Constitutional Court. The Judicial Council found that the law did not allow for decisions of the Council to be challenged by means of appeals to the Council and that its decisions were reviewable by administrative courts. The latter, however, concluded that the decision to suspend the applicant was of a preliminary nature and that under the applicable law – namely Article 248 (a) of the Code of Civil Procedure – such decisions were exempt from judicial review, a position that was ultimately endorsed by the Constitutional Court in December 2011.

The disciplinary proceedings against Mr Paluda had in the meantime been discontinued by a final decision of September 2011. A 50% part of his salary, which had been retained during his two years' suspension, was restored to him in July 2012.

Relying on Article 6 § 1 (right of access to a court), Mr Paluda complains that he was denied access to court with regard to his suspension from office.

[Çevikel v. Turkey \(no. 23121/15\)](#)

The applicant, Hediye Çevikel, is a Turkish national who was born in 1968 and lives in Batman.

The case concerns her application for compensation for damage allegedly caused by terrorist acts or counter-terrorism measures in the village of Çakırpınar.

In 1992 Ms Çevikel left the village of Çakırpınar, where she had been living until then, because of armed conflicts between the police and members of the Kurdistan Workers' Party (PKK). On 21 December 2006 she applied for compensation for damage that she alleged to have sustained on account of terrorist acts or counter-terrorism measures which had led her to leave her village. The damage assessment and compensation committee of the Batman Governor's office dismissed her claim. Ms Çevikel appealed against the committee's decision to the administrative courts. The Administrative Court dismissed her appeal and Ms Çevikel appealed on points of law.

On 9 May 2012 the Supreme Administrative Court quashed the judgment of the court below on the ground that the case file contained contradictory information about the abandonment of the village of Çakırpınar by the authorities and the village's inhabitants. On 19 November 2012 the Administrative Court again dismissed the appeal on the ground that, according to the information received from the official bodies, the village had not been totally emptied of its inhabitants, that there was no insecurity-related concern and that Ms Çevikel had not sustained any terrorist threat or attack during the period in question. Ms Çevikel lodged an individual appeal with the

Constitutional Court, which, on 28 November 2014, declared the appeal inadmissible, as manifestly ill-founded.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time), Ms Çevikel complains of the length of the proceedings brought by her to obtain compensation for the damage that she alleges to have sustained in the village of Çakırpınar as a result of terrorist acts or counter-terrorism measures.

[Mustafa Avci v. Turkey \(no. 39322/12\)](#)

The applicant, Mustafa Avci, is a Turkish national who was born in 1956 and lives in Istanbul. At the relevant time, Mr Avci, former Secretary General of the Confederation of Public Service Workers Unions was a member of the board of the Peace and Democracy Party (“BDP”), a left-wing pro-Kurdish party. The case concerns his pre-trial detention for reasons that he considers to be connected to his political activities.

In 2011 the Istanbul public prosecutor’s office opened a criminal investigation against a number of individuals suspected of belonging to the organisation KCK (according to the prosecutors, a branch of the PKK, Kurdistan Workers’ Party, an illegal armed organisation). On 11 October 2011 a judge ordered a search of the BDP office and of the homes of 60 suspects, together with arrests. On 30 October 2011 Mr Avci was arrested, taken into police custody and then brought before the Istanbul public prosecutor who, after questioning him, asked the judge to remand him in custody. Mr Avci appealed but the Istanbul Assize Court upheld the decision.

On 19 March 2012, in an indictment of over 2,000 pages, the public prosecutor indicted 193 individuals including Mr Avci. He called for the applicant’s conviction for heading the presumed terrorist organisation KCK, under Article 314 § 1 of the Criminal Code and section 5 of Law no. 3713. Following the entry into force of Law no. 6526 of 21 February 2014 amending Law no. 3713, the trial continued before the Third Division of the Assize Court, which ordered Mr Avci’s release on 24 April 2014. The procedure concerning an individual application lodged by Mr Avci with the Constitutional Court on 5 February 2014 is still pending.

Relying on Article 5 § 1 (right to liberty and security), the applicant complains that his arrest did not comply with domestic law as the authorities had not followed the procedure under Article 98 of the Code of Criminal Procedure. Relying on Article 5 § 4 (right to a speedy decision on the legality of detention), he alleges that he did not have an effective opportunity to challenge the legality of his pre-trial detention.

[Sarigül v. Turkey \(no. 28691/05\)](#)

The applicant, Resul Sarigül, is a Turkish national who was born in 1962. He was being held in Erzurum Prison (Turkey) when he lodged his application.

The case concerns the seizure, by the prison authorities, of a draft novel that Mr Sarigül had written in the prison, and the seizure of a letter to his lawyer.

On 1 December 2004 Mr Sarigül deposited a handwritten draft of a novel with the prison administration, requesting that it be sent to his lawyer, who was supposed to forward it to his family with a view to publication. On 6 December 2004 the chairman of the prison board responsible for reading prisoners’ correspondence reported that the text supported an illegal organisation, insulted the police and used abusive and inappropriate language, including expressions that were directed against women, public morale and beliefs. The manuscript was thus sent to the prison administration’s disciplinary board, which decided to seize it on 15 December 2004. On 16 December 2004 Mr Sarigül appealed to the Erzurum sentence executions judge to have that decision revoked, stating that the novel was a work of fiction, but his appeal was dismissed on 7 January 2005. Mr Sarigül appealed against the decision to the Erzurum Assize Court, invoking his freedom of expression, but was unsuccessful.

On 25 January 2005 Mr Sarıgül handed the prison administration a letter for his lawyer, together with the decision of the sentence executions judge of 7 January 2005 and his further appeal against that decision. The letter was seized by the prison administration and Mr Sarıgül's request for annulment of that decision was rejected.

In addition, a criminal investigation was opened against Mr Sarıgül for public denigration of Turkishness, of the Republic, of the armed forces and of the State security services, but the proceedings were discontinued as one of the elements of the offence – that of publicity – was lacking. In March 2006 the draft novel was returned to Mr Sarıgül.

Relying on Articles 9 (freedom of thought, conscience and religion) and 10 (freedom of expression), Mr Sarıgül complains about the seizure of his draft novel. Relying on Article 6 (right to a fair hearing), Mr Sarıgül complains about the seizure of the letter of 25 January 2005 that he had addressed to his lawyer. Without relying on any Article of the Convention, Mr Sarıgül lastly complains that the proceedings before the executions judge and the Assize Court were unfair.

Wednesday 24 May 2017

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

A.A. v. the Netherlands (no. 66848/10)

Hannan and Kirakosyan v. the Netherlands (no. 70286/14)

L v. the Netherlands (no. 68613/13)

Drobyshev v. Russia (no. 23261/04)

Dubovikov and Chupov v. Russia (nos. 57335/13 and 42645/14)

Dzasokhov and Others v. Russia (nos. 21799/10, 21816/10, and 21907/10)

Kamneva and Others v. Russia (nos. 35555/05, 2567/07, 5455/08, 6893/08, 59050/08, 48743/09 and 4568/10)

Kharitonova v. Russia (no. 56304/07)

Kucherenko and Popova v. Russia (nos. 42238/07 and 47242/07)

A. N. Nikulin v. Russia (no. 13946/14)

N. A. Nikulin v. Russia (no. 64408/14)

Prokopenko and Others v. Russia (nos. 2746/07, 2771/07 and 7815/08)

Salmin and Beskishev v. Russia (no. 11230/08)

Smirnov v. Russia (no. 34381/16)

Zhukov v. Russia (no. 32593/09)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.